

		terminated,” “aggressively stated that [Plaintiff] was an at will employee,” and then “failed to identify any legitimate basis for the termination.” (§15(b) of Complaint.) The Court finds these allegations insufficient to rise to the level of extreme and outrageous conduct to support liability. As to Defendant MDxHealth, Inc., while Plaintiff has successfully alleged discrimination, authority indicates the same will <i>not</i> support intentional infliction of emotional distress: “Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society. A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination.” (<i>Janken v. GM Hughes Electronics</i> (1996) 46 Cal.App.4th 55, 80; See also <i>Cornell v. Berkeley Tennis Club</i> (2017) 18 Cal.App.5th 908, 946.) Lastly, the Court declines to rule on Defendant’s demurrer to Plaintiff’s request for punitive damages: “A demurrer is not the appropriate vehicle to challenge a portion of a cause of action demanding an improper remedy.” (<i>Caliber Bodyworks, Inc. v. Superior Court</i> (2005) 134 Cal.App.4th 365, 384, disapproved on other grounds in <i>ZB, N.A. v. Superior Court of San Diego County</i> (2019) 8 Cal.5th 175.) “Since a demurrer does not lie to a <i>part</i> of a cause of action [citation], petitioners’ punitive damage allegations were not subject to real parties’ demurrers.” (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 163.) Defendants to give notice.
51	Mapstone vs. Karimi 22-01269276	Demurrer to Amended Complaint The demurrer to the second cause of action by Defendants Nima Karimi and Afshin Karimi is SUSTAINED with leave to amend. Defendants Nima Karimi (Nima)* and Afshin Karimi (Afshin)* demur to the second cause of action in the First Amended Complaint (FAC) on the grounds that it fails to state facts sufficient to constitute a cause of action and is uncertain. <i>*Because Nima and Afshin share the same last name, the court refers to them by their first names; no disrespect is intended.</i>

		Although the second cause of action is asserted only against Afshin, the Court treats the demurrer as brought jointly by both Defendants, consistent with the moving papers. “Negligent entrustment is a common law liability doctrine, which arises in numerous factual contexts. In cases involving negligent entrustment of a vehicle, liability is imposed on [a] vehicle owner or permitter because of his own independent negligence and not the negligence of the driver. Liability for the negligence of the incompetent driver to whom an automobile is entrusted does not arise out of the relationship of the parties, but from the act of entrustment of the motor vehicle, with permission to operate the same, to one whose incompetency, inexperience, or recklessness is known or should have been known by the owner.” (<i>McKenna v. Beesley</i> (2021) 67 Cal.App.5th 552, 565 [cleaned up]; accord, <i>Ghezavat v. Harris</i> (2019) 40 Cal.App.5th 555, 559.) The threshold issue is whether defendant had knowledge that the driver was incompetent or unfit to operate a motor vehicle. (<i>Dodge Ctr. v. Sup.Ct. (Anderson)</i> (1988) 199 Cal.App.3d 332, 341.) To establish negligent entrustment, the plaintiff must prove all of the following: (1) That the driver was negligent in operating the vehicle; (2) That the defendant owned the vehicle operated by the driver or had possession of the vehicle operated by the driver with the owner's permission; (3) That the defendant owner knew, or should have known, that the entrusted driver was incompetent or unfit to drive the vehicle; (4) That the defendant permitted the driver to drive the vehicle; and (5) That the driver's incompetence or unfitness to drive was a substantial factor in causing harm to the plaintiff. (CACI No. 724.) The FAC fails to adequately allege facts to support a cause of action for negligent entrustment. (FAC, ¶¶ 16-24.) Other than Nima’s inexperience and the alleged passenger-restriction violation, the FAC fails to allege nonconclusory facts demonstrating that Nima was incompetent or unfit to drive or that Afshin knew or should have known of such incompetence or unfitness. (See <i>Richards v. Stanley</i> (1954) 43 Cal.2d 60, 63 [car owner owes no duty not to entrust car to third party in absence of facts giving owner notice that third person is “incompetent to handle it”]; <i>Krawitz v. Rusch</i> (1989) 209 Cal.App.3d 957, 966–967 [negligent entrustment requires knowledge that driver is incompetent or knowledge of circumstances indicating that fact].) Inexperience alone, however, does not necessarily indicate incompetency. (<i>Krawitz v. Rusch, supra</i>, 209 Cal.App.3d at p. 966.) Further, although the FAC alleges that Nima violated a passenger
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		restriction, it does not allege facts showing that Afshin knew of any prior violations or knew, before entrusting the vehicle, that Nima intended to transport an unauthorized passenger. Nor does the FAC allege facts showing that Nima’s inexperience, incompetence, or unfitness, as opposed to ordinary driving negligence, was a substantial factor in causing the collision. Accordingly, the demurrer to the second cause of action is SUSTAINED with leave to amend. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Moving parties to give notice.
52	Robert Fernandez Construction Inc. vs. Scott S. Brody, as Trustee of the Bruin Trust dated December 30, 2013 25-01512433	Demurrer to Cross-Complaint Cross-Defendants Robert Fernandez Construction, Inc. and Robert Fernandez’s demurrer to the Cross-Complaint is SUSTAINED with leave to amend as to the Tenth and Twelfth Causes of Action; and OVERRULED as to all remaining grounds and challenged causes of action. Cross-Defendants Robert Fernandez Construction, Inc. (“RFC”) and Robert Fernandez (“Fernandez”) (collectively, “Cross-Defendants”) demur to the Cross-Complaint by Scott Brody, individually and as Trustee of the Bruin Trust Dated December 30, 2023 (“Scott”), and David E. Brody (“David”). <i>*Because Cross-Complainants share the same last name, the court refers to them by their first names; no disrespect is intended.</i> a. Demurrer Based on Uncertainty and Lack of Legal Capacity, and to the First Through Seventh and Ninth Causes of Action— OVERRULED California Rules of Court, rule 3.1113(a) provides that, in the case of a demurrer, the court may treat grounds not supported by a memorandum as waived. Rule 3.1113(b) further requires the supporting memorandum to contain a statement of facts, a concise statement of the governing law and arguments relied upon, and a discussion of the supporting authorities.